

Licensing Agreement

Date: 03/05/2026

between:

The LABEL

Oleksii Kasperskyi
Dear Deer Music
Geroev Stalingrada ave. 20B (Spers Center)
04210
Kyiv, Ukraine

and:

The ARTIST

Tomas Naial Aluch
Naial
Vedia1997, Nuñez, Caba, Argentina
naialmusic.ar@gmail.com

Release Details

Tracks to be licensed:

1. Naial - JIK (Original Mix)
2. Naial - Never Leave (Original Mix)

Territory: Worldwide

Term: 10 years / In Perpetuity

Royalty: 50% of net income from all digital sales & streaming for original tracks and 0% for remixes.

Licenses: 25% of net income on the remixed sound recordings resulting from third party licenses.

Format: All digital formats (EP and single).

Accounting: ½ yearly (June and December - within 90 days). On request.

Release Date: TBA

Grant of Rights: The **ARTIST** grants **Dear Deer Records** exclusive on all Masters that form part agreement to compile, manufacture, distribute, sell, promote, advertise, license and synchronize.

Grant: Use of **ARTIST** / Track name in all advertising. All 3rd Party samples must have appropriate clearance from the Copyright owner(s). **ARTIST** shall provide label with promotional materials including high resolution photographs and biography, and **ARTIST** shall be expected to promote the music online via their websites and social media profiles upon release in agreement with the **LABEL**.

On behalf of the **LABEL**



Authorized Signature
Name: Oleksii Kasperskyi
Title: On behalf of Dear Deer Music

On behalf of the **ARTIST**

Authorized Signature
Name: Tomas Naial Aluch



Terms of Agreement

1. Grant of Rights

- a) The **ARTIST** hereby grants to **Dear Deer Records** (hereafter referred to as the **LABEL**) the exclusive right to manufacture, distribute, perform and to license the manufacture, distribution and performance of the sound recordings (and any present and subsequent remixes) listed in Schedule A (hereafter referred to as "the Sound Recordings") in any form and format including, but not limited to, Phonograph Record, Compact Disc (CDs), CD-ROM, DVD, DCC, DAT, Cassette, Video, downloadable music data file available by Internet, computer, mobile telephone, kiosk or any other computer based storage medium, and any other medium now known or later invented. The **LABEL** may package one or more of the Sound Recordings with sound recordings by other artists. The **ARTIST** grants that the **LABEL** may license the Sound Recordings to third parties for reasons including, but not limited to compilations, computer games, advertisements, TV and movie synchronization.
- b) The **LABEL** may not alter the Sound Recordings without the express written permission of the **ARTIST**.

2. Territory

The territory of this agreement is **worldwide**.

3. Term of the Agreement

1. This Agreement supersedes any oral agreement already in effect. This Agreement shall commence on the date specified above and shall continue for a period of ten (10) years from the date the Sound Recordings are commercially available to the public.
2. Upon the termination of this Agreement, the **LABEL** and its licensors may continue to distribute and sell any remaining inventory then in their possession containing the Sound Recordings, and shall continue to pay the **ARTIST** royalties on these sales in accordance with this Agreement.
3. The **LABEL** shall be entitled to continue to sell digital products in perpetuity after the end of the ten (10) year term and shall continue to pay the **ARTIST** royalties on these sales in accordance with this Agreement.

4. Delivery of Sound Recordings

1. The **ARTIST** will deliver to the **LABEL** pre-master copies of the Sound Recordings which are, in the reasonable judgment of the **LABEL**, in style and content, professionally competent and fit for distribution. The Sound Recordings shall be fully mixed versions.
2. The **ARTIST** shall also deliver at the same time a listing of the titles, timing, composer and publisher of each composition. The **ARTIST** will be responsible for all recording costs.
3. The **ARTIST** will be responsible for the safekeeping of the Sound Recordings until they are delivered to the **LABEL**. The **LABEL** shall thereafter be responsible for the safekeeping of the Sound Recordings but advise that the **ARTIST** also keeps their own backup.

5. Release Date

The Sound Recordings will be made commercially available to the public within 12 months following the date this agreement is signed or the **ARTIST** may exercise the right to terminate the contract.



6. Warranties and Indemnities

The **ARTIST** represents and warrants that to the best of his or her knowledge:

1. **ARTIST** is the sole author of the Sound Recordings; now owns all rights in it granted hereunder, free of liens or encumbrances; and has full power to execute this Agreement;
2. The Sound Recordings are original with the **ARTIST**, and have not been made available previously;
3. The Sound Recordings do not infringe statutory copyrights or common law literary rights of others (including the use of unclear samples) and do not violate the rights of privacy of, or libel, other persons.

7. Publishing

ARTIST hereby exclusively grants to **LABEL**, for the duration of the Term of this Agreement, the following worldwide rights with respect to the Sound Recordings:

- a) The exclusive right to collect all mechanical and public performance royalties and other publishing income arising from the exploitation or existence of the Sound Recordings;
- b) The exclusive right to grant licenses to manufacture parts serving to reproduce the Sound Recordings mechanically, and to make mechanical, electrical and electronic reproductions thereof;
- c) The exclusive right, subject to the rights of PRS for Music Ltd. ("the PRO") and/or any associated societies to publicly perform and to authorize others to so perform the Sound Recordings by all means including, but not by way of limitation, radio and television and the Internet;
- d) The exclusive right subject to **ARTIST'S** prior approval to grant synchronization licenses for the use of the Sound Recordings in synchronization or timed relation with visual images in audio visual productions produced in the Territory including but not limited to the exploitation of the Compositions for or in connection with the advertising or marketing of any products, goods or services, theatrical motion pictures, television motion pictures, videogames and other forms of audio-visual reproduction, and for the making of copies of said audio-visual productions for the purposes of exporting such copies into all countries of the world;
- e) The exclusive right subject to **ARTIST'S** prior approval to make and publish new adaptations and arrangements of the Sound Recordings and to translate the lyrics thereof, or create indigenous language lyrics, for the Territory.
- f) The term regarding the publishing will roll over for consecutive 'Term' periods unless cancelled by either party 30 days prior to the end of the 'Term'.
- g) "The Retention Period" shall mean the Term and a period of four (4) years thereafter. In the event that the expiry of the Retention Period does not fall on 30th June or 31st December then "The Retention Period" shall be extended automatically to the next following such date;

8. Royalty

The **LABEL** shall pay the **ARTIST** in accordance with the royalty schedule stated below:

1. 50% of net income from all digital sales of the Sound Recordings on the initial **ARTIST** EP/ LP release on the **LABEL**.
2. Compensation for any other format will be negotiated at the time of occurrence.



9. Accounting and Payments

1. The **LABEL** shall prepare statements (2 per calendar year within 90 days following the end of June and December) accounting for all payments due to the **ARTIST** under this Agreement. The **LABEL** shall mail, fax or email each such statement to the **ARTIST**.
2. Each statement shall report, for each category of sales by the **LABEL**, the value of copies sold, (and total sales for the period), the royalty rate, amount of royalties and any Expenses.

10. Credits

The **LABEL** shall ensure that all physical packages manufactured and distributed in accordance with this Agreement that contain Sound Recordings shall display a credit listing the **ARTIST** as the writer and producer of the Sound Recordings. Where possible the **LABEL** will also list additional performers and credits if requested by the **ARTIST**.

11. Use of Artist's Name and Likeness

The **LABEL**, or the **LABEL**'S licensees, may use the **ARTIST**'S name, photograph, and biographical information for advertising and promotional material and packaging for the Sound Recordings, subject to the **ARTIST**'S right of approval, not to be unreasonably withheld.

12. Promotional Activities

- a) The **LABEL** agrees to perform the following promotional activities:
 1. Mail/email promotional vinyl, CDs or digital media files to selected disc jockeys, magazines, websites, radio stations and other suitable recipients as they see fit.
 2. Provide the distributor with the number of promotional copies requested by the distributor for promotional activities with record shops.
 3. Mail/email press releases to selected disc jockeys, magazines, websites, radio stations, record shops and other suitable recipients to promote the **ARTIST** and Sound Recordings.
 4. Promote the **ARTIST** and Sound Recordings via the **LABEL**'S website and other appropriate websites and forums.
- b) The **ARTIST** agrees to cooperate in all promotional activities unless they have major reasonable objections.

The **ARTIST** agrees to the following promotional requests:

1. Supply charts for websites and download stores including, but not limited to, Beatport, Juno Download, Stompy, Traxsource, What People Play, DJ Download, Resident Advisor.
2. Supply high resolution photographs suitable for publication in magazines and on websites.
3. Promote the release via their website and online social media profiles, in agreement with Dear Deer Records. The **ARTIST** also agrees to seek out their own opportunities to promote the Sound Recordings and inform the **LABEL** of such activities.



13. Law Applicable

This Agreement has been negotiated in Ukraine and shall be governed by and construed in accordance with the laws of Ukraine.

14. Notice

Any notice or payment required under this Agreement shall be in writing and delivered in hard copy or email to the parties at the addresses listed below.

'Dear Deer Music' of Ukraine, Kiev. 04210 Heroiv Stalingrada ave. 20B (Spers Center)

Email: contact@deardeermusic.com

15. Mediation Clause

If a dispute should arise under the terms of this agreement, the party claiming the dispute shall have 30 days to notify the other party. The party not claiming the dispute shall have 30 days to remedy the dispute. In the event that the dispute is not remedied within this time period further appropriate mediating action will be sought.

16. Schedule A

List the musical compositions, their authors. Author(s) – Tittle(s) – (Mix Name)

1. Naial - JIK (Original Mix)
2. Naial - Never Leave (Original Mix)

All tracks written and produced by: Tomas Naial Aluch

On behalf of the **LABEL**

Authorized Signature
Name: Oleksii Kasperskyi
Title: On behalf of Dear Deer Music

On behalf of the **ARTIST**

Authorized Signature
Name: Tomas Naial Aluch
Title: Naial